

Chapter 225

DEPARTMENTS

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**[HISTORY: Adopted by the County Council of Allegheny County as indicated in article histories.
Amendments noted where applicable.]**

ADMINISTRATIVE CODE REFERENCES

For additional information regarding government review, see Administrative Code Part 12.

ARTICLE I

Modification or Elimination**[Adopted 7-13-2004 by Ord. No. 23-04¹]****§ 225-1. Ordinance required.**

Any merger, modification or elimination of a County department, agency, or function with a non-County department, agency, or function, which County department, agency, or function no longer meets the needs of the County's taxpayers, shall be accomplished through an ordinance of the County Council.

§ 225-2. Department or agency review. [Added 3-1-2005 by Ord. No. 13-05]

Any ordinance or resolution submitted pursuant to Article IV, § 1.4-402(m), of the Allegheny County Home Rule Charter to comply with the provisions of this article shall be preceded by review of the department, agency, or function under Article 1201 of the Allegheny County Administrative Code.

§ 225-3. Independent audit required prior to modification.

Any modification of a County department, agency, or function that contemplates merger or consolidation of said department, agency, or function with a non-County department, agency, or function shall require that an independent audit of such non-County department, agency, or function be completed prior to any authorization of modification.

A. Such audit shall include:

- (1) Practices and fiscal policies of the department, agency, or function;
- (2) A review of financial data relating to the past and current administration and operation of the department, agency, or function;
- (3) An identification of any leases, subleases, contracts, sales, and purchases currently in existence for the department, agency, or function; and
- (4) An analysis of past and current use of funds, past and current bond obligations, and past and current programs and program requirements.

B. In addition to the components listed in Subsection A, the audit shall report on the existing fiscal status of the department, agency, or function and make recommendations as to items that should be altered or addressed prior to any modification.**C. Said audit shall be provided to the Chief Executive and County Council prior to any action being taken on legislation authorizing modification of a department, agency, or function.****§ 225-4. Debt carryover.**

Any modification of a County department, agency, or function that contemplates merger or consolidation of said department, agency, or function with a non-County department, agency, or function shall take into consideration any debt that would be carried over with the department, agency, or function and provide that any funding stream to pay for the debt is also transferred to the County department, agency, or function.

1. Editor's Note: This ordinance was vetoed by the Chief Executive on 7-23-2004, which veto was overridden by a two-thirds vote of the County Council 8-17-2004.